

TENTH CIRCUIT FORMS

10th CIR. FORM 1. DOCKETING STATEMENT INSTRUCTIONS AND FORM

UNITED STATES COURT OF APPEALS FOR THE TENTH CIRCUIT

Byron White United States Courthouse
1823 Stout Street
Denver, Colorado 80257
(303) 844-3157
www.ca10.uscourts.gov

DOCKETING STATEMENT INSTRUCTIONS

PLEASE FOLLOW THE INSTRUCTIONS REGARDING CONTENT CAREFULLY. IN PARTICULAR, PLEASE NOTE THAT AS OF JANUARY 1, 2019, THE COURT NO LONGER REQUIRES ATTACHMENTS TO THE DOCKETING STATEMENT.

I. APPEALS FROM DISTRICT COURT

The appellant must complete a Docketing Statement and file it in the court of appeals within 14 days after filing the notice of appeal. The docketing statement must be filed via the court's Electronic Case Filing System (ECF). Instructions and information regarding ECF can be found on the court's website, www.ca10.uscourts.gov

Please complete all sections of the Docketing Statement except Sections I-B and I-C. Section II should only be completed in criminal appeals.

II. PETITIONS FOR REVIEW OR APPLICATIONS FOR ENFORCEMENT OF AGENCY ORDERS

The petitioner must complete a Docketing Statement and file it in the court of appeals within 14 days after filing a petition for review or application for enforcement. The docketing statement must be filed via the court's Electronic Case Filing System (ECF).

Instructions and information regarding ECF can be found on the court's website, www.ca10.uscourts.gov

Please complete all sections of the Docketing Statement except Sections I-A, I-C, and II.

III. APPEALS FROM UNITED STATES TAX COURT

The appellant must complete a Docketing Statement and file it in the court of appeals within 14 days after the appeal is docketed. The docketing statement must be filed via the court's Electronic Case Filing System (ECF). Instructions and information regarding ECF can be found on the court's website, www.ca10.uscourts.gov .

Please complete all sections of the Docketing Statement except Sections I-A, I-B, and II.

UNITED STATES COURT OF APPEALS
FOR THE TENTH CIRCUIT

DOCKETING STATEMENT

Appeal Number	
Case Name	
Party or Parties Filing Notice of Appeal Or Petition	
Appellee(s) or Respondent(s)	
List all prior or related appeals in this court with appropriate citation(s).	

I. JURISDICTION OVER APPEAL OR PETITION FOR REVIEW

A. APPEAL FROM DISTRICT COURT

1. Date final judgment or order to be reviewed was **entered** on the district court docket: _____
2. Date notice of appeal was **filed**: _____
3. State the time limit for filing the notice of appeal (cite the specific provision of Fed. R. App. P. 4 or other statutory authority): _____
 - a. Was the United States or an officer or an agency of the United States a party below? _____
 - b. Was a motion filed for an extension of time to file the notice of appeal? If so, give the filing date of the motion, the date of any order disposing of the motion, and the deadline for filing the notice of appeal: _____

4. Tolling Motions. *See* Fed. R. App. P. 4(a)(4)(A); 4(b)(3)(A).

- a. Give the filing date of any motion that tolls the time to appeal pursuant to Fed. R. App. P. 4(a)(4)(A) or 4(b)(3)(A):

- b. Has an order been entered by the district court disposing of any such motion, and, if so, when?

5. Is the order or judgment final (i.e. does it dispose of **all** claims by and against **all** parties)? *See* 28 U.S.C. § 1291. _____

(If your answer to Question 5 is no, please answer the following questions in this section.)

- a. If not, did the district court direct entry of judgment in accordance with Fed. R. Civ. P. 54(b)? When was this done?

- b. If the judgment or order is not a final disposition, is it appealable under 28 U.S.C. § 1292(a)? _____

- c. If none of the above applies, what is the **specific** legal authority for determining that the judgment or order is appealable? _____

6. Cross Appeals.

- a. If this is a cross appeal, what relief do you seek beyond preserving the judgment below? *See United Fire & Cas. Co. v. Boulder Plaza Residential, LLC*, 633 F.3d 951, 958 (10th Cir. 2011) (addressing jurisdictional validity of conditional cross appeals).

- b. If you do not seek relief beyond an alternative basis for affirmance, what is the jurisdictional basis for your appeal? *See Breakthrough Mgt. Group, Inc. v. Chukchansi Gold Casino and Resort*, 629 F.3d 1173, 1196-98 and n.18 (10th Cir. 2010) (discussing protective or conditional cross appeals). _____

B. REVIEW OF AGENCY ORDER (To be completed only in connection with petitions for review or applications for enforcement filed directly with the court of appeals.)

1. Date of the order to be reviewed: _____
2. Date petition for review was filed: _____
3. Specify the statute or other authority granting the Tenth Circuit Court of Appeals jurisdiction to review the order: _____
4. Specify the time limit for filing the petition (cite specific statutory section or other authority): _____

C. APPEAL OF TAX COURT DECISION

1. Date of entry of decision appealed: _____
2. Date notice of appeal was filed: _____
(If notice was filed by mail, attach proof of postmark.)
3. State the time limit for filing notice of appeal (cite specific statutory section or other authority): _____
4. Was a timely motion to vacate or revise a decision made under the Tax Court's Rules of Practice, and if so, when? *See* Fed. R. App. P. 13(a) _____

II. ADDITIONAL INFORMATION IN CRIMINAL APPEALS.

- A. Does this appeal involve review under 18 U.S.C. § 3742(a) or (b) of the sentence imposed? _____

- B. If the answer to A (immediately above) is yes, does the defendant also challenge the judgment of conviction? _____

- C. Describe the sentence imposed. _____

- _____
- D. Was the sentence imposed after a plea of guilty? _____
- E. If the answer to D (immediately above) is yes, did the plea agreement include a waiver of appeal and/or collateral challenges? _____
- F. Is the defendant on probation or at liberty pending appeal? _____

- G. If the defendant is incarcerated, what is the anticipated release date if the judgment of conviction is fully executed? _____

NOTE: In the event expedited review is requested and a motion to that effect is filed, the defendant shall consider whether a transcript of any portion of the trial court proceedings is necessary for the appeal. Necessary transcripts must be ordered by completing and delivering the transcript order form to the Clerk of the district court with a copy filed in the court of appeals.

III. GIVE A BRIEF DESCRIPTION OF THE NATURE OF THE UNDERLYING CASE AND RESULT BELOW.

IV. IDENTIFY TO THE BEST OF YOUR ABILITY AT THIS STAGE OF THE PROCEEDINGS, THE ISSUES TO BE RAISED IN THIS APPEAL. You must attempt to identify the issues even if you were not counsel below. See 10th Cir. R. 3.4(B).

V. ATTORNEY FILING DOCKETING STATEMENT:

Name: _____ Telephone: _____

Firm: _____

Email Address: _____

Address: _____

Signature

Date

NOTE: The Docketing Statement must be filed with the Clerk via the court's Electronic Case Filing System (ECF). Instructions and information regarding ECF can be found on the court's website, www.ca10.uscourts.gov.

The Docketing Statement must be accompanied by proof of service. The following Certificate of Service may be used.

CERTIFICATE OF SERVICE

I, _____, hereby certify that on
[attorney for appellant/petitioner]

_____, I served a copy of the foregoing **Docketing Statement**, to:
[date]

_____, at _____
[counsel for/or appellee/respondent]

_____, the last known address/email address, by

_____.
[state method of service]

Signature

Date

Full name and address of attorney

10th CIR. FORM 4. DISCLOSURE STATEMENT

UNITED STATES COURT OF APPEALS
FOR THE TENTH CIRCUIT

Fed. R. Civ. P. 26.1 and Tenth Circuit Rule 26.1 Disclosure Statement

v.

Case No.

Pursuant to Federal Rule of Appellate Procedure 26.1(a), (b), and/or (c), the undersigned, on behalf of _____

[Party Name(s)]

certifies¹ as follows:

☐ The following parent corporation(s); publicly held corporation(s); organizational victim(s); and/or debtor(s) are disclosed as required by Fed. R. App. P. 26.1 (attach additional pages if necessary):

☐ There is no information to disclose pursuant to Fed. R. App. P. 26.1.

Date

Signature

¹ Pursuant to Federal Rule of Appellate Procedure 26.1(d)(3), this disclosure statement must be promptly updated whenever any of the information required under Fed. R. App. P. 26.1 changes.

CERTIFICATE OF SERVICE

I hereby certify that:

☐ All other parties to this litigation are either: (1) represented by attorneys; or
(2) have consented to electronic service in this case; or

☐ On _____ I sent a copy of this Disclosure Statement
[date]

[name of party]

at _____,
[address]

the last known address/email address, by

_____.
[method of service]

Date

Signature

TENTH CIRCUIT TRANSCRIPT ORDER FORM – DIRECTIONS ON REVERSE SIDE (Revised 12/2025)

PART I – Case Information and Contact Information

Case Name: _____ District Court Case Number: _____
 District Court: _____ Circuit Court Appeal Number: _____
 Name of Attorney/Pro Se Party Completing this Form: _____
 Name of Law Firm/or Office: _____
 Address: _____
 Phone: _____ Email: _____
 Attorney For: _____

PART II – Complete when Transcripts are NOT ordered

I am not ordering a transcript because (check one): ☐ a transcript is not necessary for this appeal;
☐ the necessary transcript is already on file in the district court;
☐ or the necessary transcript was ordered previously in appeal

Attorney/Ordering Party's Signature: _____ Date: _____

PART III – Complete When Ordering Transcripts

I hereby order the following transcript(s) from _____ (name of court reporter).
 Order all transcripts from the same court reporter on one form, but use separate forms for each court reporter.
Be specific if ordering partial transcripts (e.g., voir dire).

Name of Proceeding	Date of Proceeding	Dist. Ct. Doc. No.	Delivery (30-, 14-, 7-, 3-Day, or daily) (check with court reporter for applicable rates)

Attorney/Ordering Party's Certificate of Payment for Transcript(s) Ordered.

☒ This case is **NOT** proceeding under the Criminal Justice Act. By signing this form, I agree to pay for the transcript(s) ordered on this form, and I certify that I have already made satisfactory payment arrangements with the court reporter as confirmed by the court reporter's acknowledgement on Part IV below.

☐ This case **IS** proceeding under the Criminal Justice Act, and (check one):
☐ I am a Federal Public Defender. By signing this form, I certify that the Defender's Office will pay the cost of the transcript(s) as confirmed by the court reporter's acknowledgement on Part IV below.
☐ I am a CJA Panel Attorney. By signing this form, I certify that I will take all the steps required in eVoucher to complete payment arrangements for the transcript(s) as confirmed by the court reporter's acknowledgement on Part IV below.

NOTE: Leave to proceed *in forma pauperis* does not entitle appellant to a free transcript. An order of the district court allowing payment for the transcript at government expense must be obtained. *See* 28 U.S.C. §753(f).

Attorney/Ordering Party's Signature: _____ Date: _____

PART IV – Court Reporter's Acknowledgment of Payment and Estimated Completion Date

Date Payment Arrangements Made	Estimated Completion Date	Number of Pages	Date(s) of Proceeding(s)

I, _____, certify that satisfactory payment arrangements have been made for the transcript(s) ordered on this form, and I will provide the required notice to the circuit when I file the completed transcripts.

Signature of Court Reporter: _____ Date: _____

DIRECTIONS FOR USING THE TENTH CIRCUIT TRANSCRIPT ORDER FORM

Federal Rule of Appellate Procedure 10, Tenth Circuit Rule 10, and the Appellate Transcript Management Plan for the Tenth Circuit (Appendix A to the Tenth Circuit Rules) set forth the transcript-related responsibilities of parties and court reporters with respect to transcripts ordered for use in an appeal. Those responsibilities are summarized below. The Tenth Circuit Clerk's Office is available to answer questions regarding this form or related aspects of the Circuit's policies and procedures. Questions about payment arrangements, completion dates, and related issues should be directed to the appropriate court reporter or district court Clerk's Office.

APPELLANT'S RESPONSIBILITIES

If transcripts are not ordered: within 14 days of the date the appeal is docketed, Appellant or Appellant's counsel must:

- (1) Complete Parts I and II of this form;
- (2) File copies of the completed form in **both** the U.S. District Court and the Tenth Circuit, and serve all parties to the appeal.

If transcripts are ordered: within 14 days of the date the appeal is docketed, Appellant or Appellant's counsel must:

- (1) Complete Parts I and III of this form;
- (2) Send a copy of the completed form to each court reporter from whom transcripts are being ordered (one form per court reporter is required);
- (3) Make payment arrangements with the court reporter(s). *See* 10th Cir. R. 10.2(B)(3). Per 28 U.S.C. §753(f), a court reporter may require a deposit equal to the full estimated cost of the transcript;
- (4) Obtain the court reporter's acknowledgment on Part IV of this form;
- (5) File copies of the completed form containing the court reporter's acknowledgment in **both** the U.S. District Court and the Tenth Circuit, and serve all parties to the appeal.

Appellant or Appellant's counsel should also **note the following** regarding transcripts on appeal:

- (1) Unless the entire transcript is ordered, Appellant shall serve on Appellee(s) a statement of the issues Appellant intends to present on appeal. *See* Fed. R. App. P. 10(b)(3). The Docketing Statement required by 10th Cir. R. 3.4 fulfills this requirement.
- (2) Those portions of the transcripts that are pertinent to the appeal must be included in Appellant's appendix or, in cases where counsel is appointed, designated for inclusion in the record on appeal. *See* 10th Cir. R. 10.2, 10.3 and 30.1.
- (3) One form may be used to order multiple transcripts from the same court reporter, but a separate form must be completed and filed for each court reporter from whom a transcript is ordered.

APPELLEE'S RESPONSIBILITIES

Unless the entire transcript is ordered, Appellee may, within 14 days after service of Appellant's transcript order and statement of the issues, file and serve on Appellant a designation of additional transcript(s). If, within 14 days, Appellant does not order and pay for the additional transcript(s) so designated, Appellee may, within 14 additional days, order and pay for the transcript or move in the district court for an order compelling Appellant to do so. *See* Fed. R. App. P. 10(b)(3).

COURT REPORTER'S RESPONSIBILITIES

Upon receipt of this form and after satisfactory payment arrangements have been made, the court reporter must:

- (1) Complete Part IV and return the completed form to the ordering attorney/party for filing with the court; and
- (2) Provide any required notice to the U.S. District Court Clerk's Office.

Once the transcript is complete, the court reporter must

- (1) Deliver the original to the requesting party or counsel later appointed;
- (2) File a certified copy with the district court clerk; and
- (3) Notify the circuit clerk that the transcript has been filed.

When completing Part IV of this form, **court reporters are reminded that** transcripts must be filed within 30 days of the date payment arrangements are made. Per the Appellate Transcript Management Plan for the Tenth Circuit ("Plan"), which can be found at Appendix A to the Tenth Circuit Rules, court reporters may be subject to a mandatory fee reduction if transcripts are not timely filed. Court reporters may request an extension of the 30-day deadline and a waiver of the mandatory fee reduction per Sections 4 and 5 of the Plan.

UNITED STATES COURT OF APPEALS
FOR THE TENTH CIRCUIT

**ENTRY OF APPEARANCE AND CERTIFICATE OF INTERESTED
PARTIES**

v.

Case No.

ENTRY OF APPEARANCE (10th Cir. R. 46.1(A))

In accordance with Tenth Circuit Rule 46.1, the undersigned attorney(s) hereby appear(s)
as counsel for:

[Party or Parties]¹

_____, in the above-captioned case(s).
[Appellant/Petitioner or Appellee/Respondent]

Attorneys entering appearances must include their signatures below.

Name of Counsel

Name of Counsel

Signature of Counsel

Signature of Counsel

Mailing Address and Telephone Number

Mailing Address and Telephone Number

E-Mail Address

E-Mail Address

¹ Counsel must list each party represented. Do not use “et al.” or generic terms such as
“Plaintiffs.” Attach additional pages if necessary.

CERTIFICATE OF INTERESTED PARTIES (10th Cir. R. 46.1(D))

Pursuant to Tenth Circuit Rule 46.1(D), the undersigned certifies² as follows:

- ☐ The following (attach additional pages if necessary) individuals and/or entities are not direct parties in this appeal but do have an interest in or relationship to the litigation and/or the outcome of the litigation. *See* 10th Cir. R. 46.1(D). In addition, attorneys not entering an appearance in this court, but who have appeared for a party in prior trial or administrative proceedings, are noted below.

- ☐ There are no such parties/attorneys, or any such parties/attorneys have already been disclosed to the court.

Date

Signature

² Pursuant to Tenth Circuit Rule 46.1(D)(6), this certificate must be promptly updated if the required information changes.

CERTIFICATE OF SERVICE

I hereby certify that:

- ☐ All other parties to this litigation are either: (1) represented by attorneys; or
(2) have consented to electronic service in this case; or
- ☐ On _____ I sent a copy of this Entry of Appearance
Form to:
[date]

at _____,

the last known address/email address, by _____.

[state method of service]

Date

Signature

UNITED STATES COURT OF APPEALS FOR THE TENTH CIRCUIT
ANSWERS TO FREQUENTLY ASKED QUESTIONS

Please refer to the 10th Circuit ECF Manual and Briefing and Appendix Checklist for Additional Information

Computation of Time: Fed R. App. P. 25(a), 26(c)	If ordered by a date certain, the 3-day mailing rule does not apply; if time to file runs “from date of service,” the 3-day rule applies only if service not completed electronically. Only briefs and appendices are treated as timely filed on the date mailed or delivered to a commercial carrier. Fed. R. App. P. 25(a)(2)(A)(ii). Other pleadings must reach the court by the due date.		
WHAT	WHO FILES	WHEN	REMARKS
Docketing Statement: 10th Cir. R. 3.4	Appellant	14 days from case opening letter.	
Entry of Appearance and Certificate of Interested Parties: 10th Cir. R. 46.1	Counsel for all parties	14 days from case opening letter.	
Disclosure Statement: 10th Cir.R. 26.1(A)	Counsel for all parties	14 days from case opening letter.	Statement must be filed even if there is nothing to disclose, and it must be promptly updated as necessary.
Transcript Order Form: Fed. R. App. P. 10(b)	Appellant Appellee	14 days from case opening letter. 14 days from the appellant’s form.	Must file in district court with copy here – even if no transcript is ordered. If transcript is ordered, must also notify court reporter.
Designation of Record: 10th Cir. R. 10.3	Court-appointed counsel ONLY	Appellant - 14 days from case opening letter.	Must file in district court and file copy here. Must attach the district court docket sheet with the designated documents circled.
Motions: Fed. R. App. P. 27 10th Cir. R. 27	Any party	Varies.	Must include opposing parties’ position and, if applicable, the custody status, current due date or any previous extensions. Typed motions may not exceed 5,200 words; handwritten motions may not exceed 20 pages.
Appellant’s Opening Brief: Fed. R. App. P. 28, 31, 32 10th Cir. R. 28, 31, 32	Appellant with retained counsel Appellant with appointed counsel	40 days from the date district court certifies the record as complete. 40 days from date record is filed in circuit court.	Blue cover. Must include oral argument statement on the front cover (if requested, a reason must be given at conclusion); prior or related appeals; order & judgment appealed. See 10th Cir. R. 28.2. Certificate of compliance for length limit needed (may not exceed 13,000 words). Size 14 font is preferred, but 13 is acceptable, including footnotes.
Appellee’s Response Brief: Fed. R. App. P. 28, 31, 32 10th Cir. R. 28, 31, 32	Appellee	30 days from service of appellant’s opening brief.	Red cover. Oral argument statement, etc., same as appellant’s opening brief. Attach order or judgment if appellant failed to include it in their brief. If more than 30 pages, certificate of compliance needed (may not exceed 13,000 words).

Appellant's Reply Brief: Fed. R. App. P. 28, 31, 32 10th Cir. R. 28, 31, 32	Appellant	21 days from service of appellee's response brief.	Gray cover. If more than 15 pages, certificate of compliance needed (may not exceed 6500 words).
Cross Appeals: Fed. R. App. P. 28, 28.1, 31, 32 10th Cir. R. 28, 31, 32	Appellant's Principal Brief	40 days from date district court certifies the record as complete. (If court-appointed counsel, 40 days from the date the record is filed in the circuit court.)	Blue cover. Must include oral argument statement on the front cover (if requested, a reason must be given at conclusion); prior or related appeals; order and judgment appealed. If more than 30 pages, certificate of compliance needed (may not exceed 13,000 words).
	Appellee's Principal and Response Brief	30 days from service of Appellant's Principal brief.	Red Cover. If more than 35 pages, certificate of compliance needed (may not exceed 15,300 words).
	Appellant's Response and Reply Brief	30 days from service of Appellee's Principal and Response brief.	Yellow cover. If more than 30 pages, certificate of compliance needed (may not exceed 13,000 words).
	Appellee's Reply Brief	21 days from service of Appellant's Response and Reply brief.	Gray cover. If more than 15 pages, certificate of compliance needed (may not exceed 6,500 words).
Supplemental Authority: Fed. R. App. P. 28(j)	Any party	Any time after briefing.	Must be drafted in the form of a letter, with a 350-word limitation.
Appendix: Fed. R. App. P. 10, 30 10th Cir. R. 10, 30, 30.1	Appellant or Appellee	With principal brief. <i>Sealed documents must be filed in separate volume(s) and be accompanied by a motion to seal.</i>	All appendices must be filed via ECF; in addition, 1 hard copy submitted to the court when requested by the court.
Trial Exhibits: 10th Cir. R. 10.3(D)(5)	Appellant or Appellee	With principal brief.	Copies of trial exhibits may be included in the appendix or submitted via motion if appeal is proceeding on the record.
Petitions for Panel Rehearing/Rehearing En Banc: Fed. R. App. P. 40 10th Cir. R. 40	Any party	14 days from the date of entry of judgment. In a civil appeal where the U.S. is a party, 45 days from entry of judgment.	Three-day mailing rule <i>does not apply</i> . A copy of the opinion or OJ <i>must be</i> attached for en banc review. <i>See</i> 10th Cir.R. 40.2(B). If en banc, must include Fed. R. App. P. 40(b)(2) statement. Hard copies are not required.

NOTE: In counseled cases, all documents must be filed via ECF. See the Court's CM/ECF User's Manual, which can be found on our website. All documents must be double-spaced, except for footnotes and quotations containing more than two lines. Seven hard copies of all merits briefs and one copy of appendices must be submitted when requested by the court.